

In the Supreme Court of Bangladesh
High Court Division
(Criminal Miscellaneous Jurisdiction)

Criminal Misc. Case No. of 2024

In the matter of:

An application under section 561A of
the Code of Criminal Procedure.

-And-

In the matter of:

Mosammat Renu Akter

..... Accused-Petitioners

-Versus-

The State

..... Opposite Party

Mr. Mohammad Ali, Advocate

..... For the petitioner.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

..... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 30th August, 2023

This petitioner under Sections 561A of the
Code of Criminal Procedure at the instance of
the sole accused of Session Case No.322 of 2022
under Section 138 of the Negotiable Instrument
Act, 1881 for quashment of above proceedings.

The petitioner is a 1st class Contractor and she purchased bricks, sand iron rod and gave a blank cheque. But the complainant opposite party wrote a big sum on the above cheque and submitted for encashment which was dishonored.

The petitioner submitted a petition for discharge her from above case. But the same was not heard or considered by the learned Joint Sessions Judge, 3rd Court, Patuakhali.

It turns out from order No.11 dated 18.06.2023 the petition for discharge filed by the petitioner was taken up for hearing. But none appeared on behalf of the petitioner accused person for hearing of above petition.

The learned Advocate for the petitioner could not show us any lawful ground justifying discharge of the petitioner from this case.

In above view of the materials on record we are unable to find any substance in this petition.

Accordingly, this application under Section 561A of the Code of Criminal Procedure is rejected summarily.

MD. MASUDUR RAHMAN
BENCH OFFICER